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**Must be postmarked or
submitted online
NO LATER THAN
JUNE 11, 2026**

**Excelsior Incident
Settlement Administrator
P.O. Box 6484
Portland, OR 97228-6484
ExcelsiorDataSettlement.com**

EXCELSIOR INCIDENT CLAIM FORM

Szucs et al. v. Excelsior Orthopaedics, LLP et al., Index No. 812753/2024, Supreme Court of New York, County of Erie

GENERAL INFORMATION

You are included in the Settlement Class if you are a resident of the United States and your Personal Information was potentially accessible as the result of the Incident that occurred on or about June 24, 2024, and you may submit a Claim.

The easiest way to submit a Claim is using the tear-off Claim Form provided to you or online at ExcelsiorDataSettlement.com. Alternatively, you can print out, complete, and mail this entire Claim Form (with any required documentation) to the mailing address above. **Claims must be submitted online or mailed by June 11, 2026.**

SETTLEMENT BENEFITS – WHAT YOU MAY GET

As a Settlement Class Member, you may be eligible for the following Settlement Benefit options:

1. **Documented Loss Payment:** You may submit a Claim Form and provide reasonable documentation for losses related to the Incident for up to \$5,000 per Settlement Class Member. Supporting documentation is required.

OR

2. **Cash Fund Payment:** Instead of a Documented Loss Payment, without providing documentation, you may submit a Claim Form to receive a pro rata (a legal term meaning equal share) cash payment.

If the total amount of approved Documented Loss Payments exceeds the Net Settlement Fund as described in the Settlement Agreement, there will be no Cash Fund Payments, and the Documented Loss Payments will be subject to a pro rata (a legal term meaning equal share) decrease.

AND

3. **Credit Monitoring:** Without submitting a Claim Form, you will receive an activation code for two years of free Credit Monitoring services with three credit bureaus located on your Settlement Notice. The Credit Monitoring code can be activated after final settlement approval.

After final approval, go to ExcelsiorDataSettlement.com or call toll-free 1-877-327-7791 for instructions on how to activate your Credit Monitoring code.

* * *

Please note: The Settlement Administrator may contact you to request additional documents to process your Claim.

For more information and complete instructions, visit ExcelsiorDataSettlement.com.

Please note that Settlement Benefits will be distributed, and the Credit Monitoring code activation will be available, after the Settlement is approved by the Court and becomes final.

Questions? Go to ExcelsiorDataSettlement.com or call 1-877-327-7791.

Contact Information

1. NAME (REQUIRED):

First Name

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Last Name

[illegible]

2. MAILING ADDRESS (REQUIRED):

Street Address

[illegible]

Apt. No.

[illegible]

City

[illegible]

State

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ZIP Code

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3. PHONE NUMBER:

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4. EMAIL ADDRESS:

[illegible]

5. UNIQUE ID:

[illegible]

6. CASH PAYMENT METHOD (SELECT ONLY ONE):

☐ Physical Check ☒ Electronic Payment (You must provide a valid email address)

Credit Monitoring Services

You may be eligible to receive free Credit Monitoring services.

All Settlement Class Members will receive an activation code located on their Settlement Notice for two years of free Credit Monitoring services with three credit bureaus. You do not need to submit a Claim Form for Credit Monitoring. Please keep your Settlement Notice and check the Settlement Website from time to time to learn when the Settlement receives final Court approval. After final Court approval, you will be able to activate your free Credit Monitoring services.



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Documented Loss Payments

If you lost or spent money related to the Incident and have not been reimbursed for that loss/expense, you can receive reimbursement for up to \$5,000 total. Eligible losses include those incurred after June 24, 2024, and up to the date of filing your Claim.

It is important for you to send reasonable documentation showing what happened and how much you lost or spent so you can be reimbursed.

If you do not submit reasonable documentation supporting a loss, or if your Claim Form is invalid as determined by the Settlement Administrator, and you do not cure your Claim Form, your Claim Form will be processed as a Cash Fund Payment.

To look up more details about how the Documented Loss Payments work, visit **ExcelsiorDataSettlement.com** or call toll-free **1-877-327-7791**. Please also review the Long Form Notice on the Settlement Website, which provides examples of what documents you need to attach and the types of expenses that can be claimed. *By filling out the boxes below, you are certifying that the money you spent doesn't relate to other data incidents or breaches.*

Expense Type and Examples of Documents	Amount and Date	Description of Expense or Money Spent and Supporting Documents (Identify what you are attaching, and why it's related to the Incident)
Professional fees incurred to address identity theft or fraud, such as falsified tax returns and account fraud <i>Examples: Receipts, notices, or account statements reflecting payment for a credit freeze or unfreezing.</i>	\$. - - MM DD YYYY	
Unreimbursed fraud losses or charges resulting from identity theft or fraud (provide detailed description) fairly traceable to the Incident. <i>Examples: Account statement with unauthorized charges circled; bank fees, and fees for credit reports, credit freezes, credit monitoring, or other identity theft insurance products purchased</i>	\$. - - MM DD YYYY	
Other miscellaneous expenses such as notary, fax, postage, copying, mileage, and/or long-distance telephone charges related to the Incident. <i>Examples: Phone bills, receipts, detailed list of addresses you traveled to (i.e., police station, IRS office), reason why you traveled there (i.e., police report or letter from IRS re falsified tax return), and number of miles you traveled</i>	\$. - - MM DD YYYY	

Questions? Go to **ExcelsiorDataSettlement.com** or call **1-877-327-7791**.



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Cash Fund Payment

Instead of a Documented Loss Payment, without providing documentation, you may elect to receive a pro rata (a legal term meaning equal share) Cash Fund Payment.

If the total amount of approved Documented Loss Payments exceeds the Net Settlement Fund, there will be no Cash Fund Payments.

☒ **By checking this box, I affirm I want to receive a Cash Fund Payment.**

Signature

I affirm under the laws of the United States that the information I have supplied in this Claim Form and any copies of documents I am sending to support my Claim are true and correct to the best of my knowledge.

I understand I may be asked to provide more information by the Settlement Administrator before my Claim is considered complete.

Signature

Date:

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MM DD YYYY

Lina Liao

Print Name

Questions? Go to ExcelsiorDataSettlement.com or call 1-877-327-7791.